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Lease Termination

If you sign a lease but don't move in

If you sign a lease but don't move into the rental unit by the lease (move-in) date, the owner must return your security deposit or rent prepayment if either you or the owner find a replacement resident who is satisfactory to the owner, and if the replacement resident moves into the dwelling on or before the lease commencement date.

Sometimes in these types of situations, the owner may find someone else who is willing to move in before the original lease start date. In such cases, the owner may retain or deduct from the security deposit or rent prepayment: (1) a sum agreed to in the lease as a lease cancellation fee; or (2) the actual expenses (including time) incurred by the owner in securing the replacement.

If you need to move

If you must move before your lease expires notify the owner/manager immediately. Make sure you also comply with whatever notice requirements are in the lease for moving at the end of your lease. Many leases require 30 or 60 days written notice.

While some leases offer a lease termination option, normally you still will be liable for all of the rent for the remainder of the unexpired lease term even if you've quit school, changed jobs, lost a roommate, etc. Sometimes this can be worked out if a replacement is found.

You may also be responsible for a reletting fee if the lease provides for one. This fee is a liquidated amount for damages to compensate the owner for the time and expense incurred in finding a new resident.

Members of the military or new enlistees may be eligible to terminate their lease without penalty if deployed or receiving a permanent change of station. Be sure to provide proper documentation to the property as soon as you are aware of the need to terminate the lease.

State law also provides that victims of domestic violence, stalking or sexual assault may also be able to terminate their lease without penalty, upon showing certain proof to the property owner.

You are still considered to be a resident until the time you've given up possession of the rental unit, typically this is indicated when you've returned the rental unit's keys or other access devices to the management.

Eviction

Evictions are a last resort, but sometimes there are no other options. Owners rely on rental income to meet their financial obligations, including maintaining the property and providing services, supporting the community by paying taxes, and other costs of doing business including paying lenders, employees and service providers.

If you find that you are unable to pay rent, you should immediately contact the owner to see if there are alternatives to eviction. In some cases, the owner may be aware of programs that can provide rental assistance, be able to work out a payment plan, or consider other alternatives.

If you have not paid your rent or violate other provisions in your lease, you may receive a Notice to Pay Rent or Vacate or a Notice to Vacate, which is a notice that the owner may file an eviction case in Justice of the Peace (JP) Court.

Typically, under state law this notice is given at least three days before a case is filed, but the time frame can vary if there is a provision in a written lease providing for a shorter time frame (such as the TAA lease that provides a one-day notice).

If you do not comply with the notice, the owner may file an eviction lawsuit and you will be served notice of the lawsuit by a constable or other qualified law enforcement official. Within 21 days after the eviction petition is filed, the justice of the peace will hold a hearing.

You will have the opportunity to have your case heard before a JP. Following a ruling in the case, parties have five days to appeal to county court. If the case is not appealed and the ruling is in the property owner's favor, the JP will issue what is called a writ of possession, which is a court order giving the right of occupancy of the rental unit back to the rental property owner.

A constable or other qualified law enforcement will then post a 24-hour notice before executing the writ of possession and finalizing the eviction.

Note: While parties in an eviction suit can represent themselves in JP court, you may seek legal counsel.

State Bar of Texas (<https://www.texasbar.com/AM/Template.cfm?>

Section=Find_A_Lawyer&Template=/CustomSource/MemberDirectory/Search_Form_Client_Main.cfm)

Texas Law Help (<https://texaslawhelp.org/>)

← Understanding the Lease Agreement (<https://www.taa.org/resources/understanding-the-lease-agreement/>)

Your First Steps in Apartment Management → (<https://www.taa.org/resources/your-first-steps-in-apartment-management/>)